

Spring Meadow

OWNERS ASSOCIATION, INC.

HANDBOOK OF ARCHITECTURAL GUIDELINES AND RULES AND REGULATIONS

*******IMPORTANT*******

All proposed home modifications and property improvements must have specific prior approval from the Architectural Review Board before any action can be taken by homeowner.

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Article I. Introduction

Section 1.01 Intent of Guidelines

The Architectural Guidelines and Rules and Regulations (the “Guidelines” or the “Handbook”) are adopted pursuant to Article IX of the Declaration of Covenants, Conditions, and Restrictions for Spring Meadow (the “Declaration”) and is designed to provide an overall framework and comprehensive set of standards, procedures and rules for the development of the community in an orderly and cohesive manner.

Compliance with the standards, procedures and rules of these Guidelines is required, but does not constitute the sole basis for review of applications for approval under Article IX of the Declaration, nor does it guarantee any approval of any submission or application. Each submission presented to the Architectural Review Board (the “ARB”), appointed by the Declarant, will be approved or denied based on its own conditions. The board has the expressed right to consider any and all factors it deems relevant. **ARB decisions may be based on purely aesthetic considerations.** Each owner and member of the Spring Meadow Owner’s Association acknowledges that determinations as to such matters are purely subjective and opinions may vary as to the desirability and/or attractiveness of the proposed addition or modification. Decisions are made on a case-by-case basis, and although a modification or addition may have been approved in one instance, there is no guarantee that it will be approved again.

This document is not intended to replace the Declaration of Covenants, Conditions, and Restrictions but rather to clarify and to simplify the process by which homeowners may customize and modify the exterior property associated with the home and home site. Additional conditions may apply to improvements and modifications of properties that are not found in these Guidelines. Both the Declaration and the Guidelines should be reviewed by the homeowner in order to determine whether an improvement or modification will be approved by the ARB.

Unless otherwise specifically exempted by the Declaration or these Guidelines **all proposed modifications and additions to homes and lots within Spring Meadow require application to and prior approval of the ARB (see attached form).** Where these Guidelines specifically permit an owner to proceed without prior approval, such permission shall only be effective so long as the owner complies with the requirements of the Declaration and/or Guidelines.

ANY HOMEOWNER WHO INITIATES ALTERATIONS, ADDITIONS, IMPROVEMENTS OR REPAINTING WITHOUT PRIOR WRITTEN APPROVAL BY THE ARCHITECTURAL REVIEW BOARD RISKS HAVING TO CORRECT OR REMOVE SAID ACTION AT HIS/HER OWN EXPENSE.

Article II. Maintenance

Section 2.01 Performed by the Association and Residents

- (a) The Association is responsible for the exclusive management and control of the common area. The association shall be responsible for the payment of all costs, charges and expenses incurred in connection with the operation, administration and management of the common area.
- (b) The association shall also be responsible for the maintenance and repair of all Roadways within Spring Meadow until they are accepted for maintenance by the North Carolina Department of Transportation or other governmental entity.
- (c) No resident shall cause any object to be fixed to the common property (including the planting of any plant material) or in any manner change the appearance of the common property without prior consent of the ARB.
- (d) The cost of repair or replacement of any improvement maintained by the Association, in cases where the repair or replacement is required because of an act of negligence or omission of any owner (including guests, family members and tenants of the owner), shall be the responsibility of the owner.
- (e) Residents are required to keep their property maintained in such a manner as to provide a neat and attractive appearance of a first-class residential neighborhood.
- (f) The Spring Meadow Owner's Association, at its sole discretion, reserves the right to temporarily maintain a homeowner's property if said property is deemed by the Board of Directors to be unruly, not consistent with community standards for a neat and attractive appearance or presents a health hazard due to high grass, weeds or other negligent reasons. All fees associated with this action will be the responsibility of the homeowner to pay.

Article III. Improvements to Lots

Section 3.01 General Guidelines

- (a) ALL improvements to lots require specific prior approval by the Architectural Review Board and will be approved or disapproved based on compliance with the Declaration, these Guidelines and/or the aesthetic discretion of the ARB.
- (b) All projects should be completed within thirty (30) days of start date, unless not feasible due to the magnitude of the project.
- (c) Any utility additions must be underground and adhere to applicable code for such utilities.
- (d) All applications must include a detailed description of the planned project and must contain the following information, as applicable:
 - * Size of structure
 - * Height
 - * Wall material
 - * Estimated length of construction
 - * Location
 - * Quantity
 - * Detailed drawing
 - * Utilities

Section 3.02 Fences

- (a) **Only black metal fencing with a maximum height of five feet (5') will be approved in Spring Meadow.** ONLY this type of fencing will be allowed.
- (b) The spacing between the pickets of all perimeter fencing shall not be less than one and one-half (1 ½") inches and all such pickets shall be installed on the exterior, if applicable.
- (c) A single fence is permitted between adjacent lots sharing a common property line. All fencing must be installed on or within three (3") inches of shared property lines to permit future fence connectivity of adjoining property owners.
- (d) Chain link, split rail, wood/vinyl privacy, shadowbox or any other type of wood or metal fencing in any form is strictly prohibited (including dog pens/runs of any material).
- (e) No fencing (or densely planted hedges) is permitted in the front or side yards and must tie into the home no closer to the street than the **back building corners** of the dwelling. Under no circumstances may an applicant erect a fence outside of the property line. In the event of an obstacle, the homeowner must shift the fence inside the boundary line of the lot.
- (f) Fences on corner lots must run parallel to the side street and be installed at least three (3) feet off any side-street sidewalk or right-of-way. **Under no circumstances may the fence encroach into any sight triangles or sight distance easements noted on the survey.**
- (g) Screen fencing around a patio, deck, in-ground pool or sanitary containers not to exceed six (6') may be erect AFTER receiving approval by the ARB.

Section 3.03 Accessory Structures or Storage Buildings

- (a) Under no circumstances shall a homeowner place or construct any metal, fiberglass, plastic or canvas tent, barn, carport, garage, utility building, storage building or other metal, fiberglass, plastic or canvas structure be permitted on any lot in Spring Meadow.

Section 3.04 Play and Exercise Equipment

- (a) No recreational equipment including, but not limited to, basketball backboards and hoops, trampolines, swing sets, tree houses, children's climbing or play apparatus and other equipment associated with either adult or juvenile leisure or recreation shall be attached to the exterior of any house or otherwise placed or kept on any lot, except in the rear yard and approved by the Review Board.

Children's play toys and other moveable equipment of any type (such as lawn mowers, garden tools, etc.) shall be kept in the rear yard except when in use. Notwithstanding any of the foregoing, all recreational equipment shall be screened so as not to be visible from any roadway, and all screening used must be approved by the ARB.

Section 3.05 Basketball Goals

- (a) Permanent basketball goals must be submitted to the ARB for approval prior to installation. Permanent basketball goals are defined as a backboard and goal mounted on a pole set permanently in concrete, in the ground. Permanent basketball goals are permitted utilizing clear or white backboards, mounted on a dark gray, dark green or black pole made of metal.
- (b) In the event that the installation of the basketball goal and subsequent play causes undue hardship on neighboring properties through the retrieval of basketballs or late-night play, etc., the ARB, at its sole discretion may require, and the applicant agrees to comply with additional rules and regulations that limit play to daytime hours.
- (c) **Portable basketball goals** are not permitted in Spring Meadow.

Section 3.06 Landscaping Modifications and Requirements

- (a) Lawns: All lawns must be maintained consistent with standards expected of a first-class residential neighborhood.
- (b) Plant Materials: ANY significant changes or additions from builder installed plant materials require architectural approval. Exceptions are annuals in existing plant beds, which may be planted without approval. Any landscape material which dies on a residential lot shall be promptly removed and replaced.
- (c) Plant Beds: additional plant beds or expansions of existing plant beds may be approved but require architectural approval.
- (d) Mulch: ONLY pine needles, natural colored wood mulch or natural-colored engineered rubber mulch are allowed in plant beds. **All types of colored rocks (including white) and gravel, etc. are prohibited.**
- (e) Edging / Borders: edging and/or borders around plant beds may be approved, but require architectural approval. No **retaining block material** shall be used for edging around trees or beds in Spring Meadow unless retaining block is approved by the ARB.
- (f) Vegetable Gardens: vegetable gardens are prohibited in front and side yards. Small gardens may be approved in rear yards, but require architectural approval and cannot be visible from the street.

Section 3.07 Doghouses, Dog Pens and Dog Runs

- (a) One doghouse per lot may be approved by the ARB provided that it is located in the rear yard of a residence and not visible from the street.
- (b) Dog pens and/or runs are not permitted anywhere on the property.

Section 3.08 Exterior Lighting

- (a) Eave-mounted floodlights and low-level landscape lighting may be approved but require submission to, and approval from, the ARB in advance of their installation. All homeowner-installed exterior lighting must be configured, positioned and directed so that they do not cast light beyond the boundaries of the homeowner lot.

Section 3.09 Swimming Pools and Hot Tubs

- (a) In-ground swimming pools may be approved, but require the installation of an approved perimeter fence enclosing the entire rear yard.
- (b) **Above-ground pools defined as any pool that requires, for its normal course of operation, inflation, a ladder, steps, a water filtration system, a pump or any combination of these items are prohibited in Spring Meadow.**
- (c) Hot tubs may be approved but require the submission of a screening plan in order to obstruct the hot tub from the view of adjacent property owners.

Section 3.10 Signage

- (a) Only the following types of signs are permitted on any lot:
 - (i) One temporary sign advertising the home for sale, provided the sign has a maximum face area of five (5) square feet on each side and, if freestanding, stands no more than four feet (4') off of the ground.
 - (ii) One security service sign located in the front yard and one located in the rear yard, provided the signs have a maximum face area of two (2) square feet.
 - (iii) Notification signage as may be required by legal proceedings or a governmental entity (such as a building permit).
 - (iv) No more than two (2) political signs may be displayed on any lot at any one time, unless the applicable municipality allows more than two.

Section 3.11 Mailboxes, Delivery Receptacles and Identification Markers

- (a) The Declarant, in its sole discretion, may require that mail will be distributed in the community using shared, cluster mailboxes.
- (b) The ARB shall have the right to approve the location, color, size, design, lettering and all other particulars of receptacles for the receipt of mail, newspapers or similarly-delivered materials if applicable.
- (c) The ARB shall also have the right to require that all signage relative to the sale and/or leasing of a property be uniform in nature.

Article IV. Improvements to Structures

Section 4.01 General Guidelines

- (a) ALL improvements to structures require specific prior approval by the Architectural Review Board, and will be approved or disapproved based on compliance with the Declaration, these Guidelines and / or the aesthetic discretion of the ARB.
- (b) All projects should be completed within thirty (30) days of start date, unless not feasible due to the magnitude of the project.
- (c) Any utility additions must be underground and adhere to applicable code for such utilities.
- (d) All applications must include a detailed description of the planned project and must contain the following information, as applicable:
 - * Size of structure
 - * Height
 - * Wall material
 - * Location
 - * Utilities (water, electric)
 - * Estimated length of construction
 - * Roof design
 - * Roof material
 - * Exterior finish
 - * Quantity
 - * Detailed drawing

Section 4.02 Additions

- (a) Must adhere to all applicable building codes.
- (b) Exterior surfaces must match those on existing structure.

Section 4.03 Decks and Patios

- (a) Must adhere to all applicable building codes.
- (b) Decks and patios cannot extend into a side yard beyond the side plane of the home.
- (c) Decks must be waterproofed, sealed or stained a natural wood color.
- (d) Ground-level patios must be constructed of concrete, stone or brick pavers.

Section 4.04 Satellite Dishes

- (a) Maximum allowable size for a satellite dish is thirty (30") inches.
- (b) Approved dishes must be mounted to the house in a position not visible from the street
- (c) If installation is required in a location other than the above-reference location, include a statement from the installer with the architectural request form. The association reserves the right to obtain a second opinion from a licensed installer and may require the homeowner to move dish location or include a landscape screening plan at their expense based on results from the licensed installer.
- (d) No other types of television or radio pole, antenna, aerial or tower may be constructed, installed, erected or maintained on any lot in Spring Meadow.

Section 4.05 Exterior Colors

- (a) All exterior changes including, but not limited to, painting, staining, addition of storm doors and shutter replacement require approval from the Architectural Review Board. All proposed exterior changes must conform to the original scheme designed by the builder.
- (b) Shutters and doors must compliment the exterior color scheme and maintain the original colors intended by the builder.

Article V. Aesthetics

Section 5.01 Flags

No flags, banners, or pennants of any kind, including the flag of the United States of America or the State of North Carolina shall be placed, flown, or displayed in the public view on any lot or the common area except as expressly permitted or approved in writing by the ARB. Signs or flags placed or displayed in violation of this section may be removed and destroyed without notice by the Declarant and/or the Association.

Section 5.02 Window Treatments

- (a) Only typical window treatments such as blinds, draperies, shades and plantation shutters are allowed and do not require architectural approval.
- (b) Window air conditioning units or fans are not allowed.

Section 5.03 Exterior Holiday Decorations

- (a) Holiday decorative lighting and seasonal decorations shall be allowed from Thanksgiving to January 15th of the following year, provided, however that the Board may adopt regulations limiting the type, intensity and number of decorative lights and decorations so allowed. Other seasonal decorations are approved two weeks prior to the event until two weeks after the event.

Section 5.04 Trash Removal

- (a) Garbage cans and recycle bins must be stored in one of the following locations (stated in order of preference):
 - (i) Inside the garage
 - (ii) Behind the home or along the side but **MUST** be screened from street view and from other homes. If placed behind or to the side of the home as described above, owner must submit (and receive approval from) the ARB a trash receptacle screening plan or landscape screening plan that conceals the containers from view completely. **The ARB has the exclusive right to determine the type(s) of trash can screens permitted.**
- (b) No refuse containers (of any type) may be stored or placed in the front of the home other than on collection days.
- (c) No garbage can or recycle bin should be placed at the curb any earlier than the night before collection and should be removed by midnight the day of collection.

Article VI. Parking

Section 6.01 Parking of Personal, Non-Commercial Vehicles

- (a) The ONLY approved parking locations for resident passenger vehicles or pick-up trucks shall be on an owner's driveway or in an owner's garage. **If an owner has more than two cars the owner MUST utilize the garage to store or park the additional vehicle(s) that are registered to occupants residing in the home. In no case shall a resident or occupant of the home be allowed to park or store a vehicle on any roadway at any time.**
- (b) Personal vehicles parked in driveways may not extend into the sidewalk area.

Section 6.02 Parking of Commercial and Recreational Vehicles

- (a) A "commercial vehicle or commercial-use vehicle" as defined by the Declaration shall mean any vehicle having a carrying capacity and/size designation greater than or equal to three-fourths (3/4) of a ton; any vehicle other than a law enforcement vehicle bearing a company name or logo; any vehicle with ladders on top or in truck bed; and any "box" van or truck. Additionally, the Board reserves the right to further define a vehicle as "commercial" if said vehicle is used primarily for commercial purposes other than commuting to and from the workplace.
- (b) No boat, trailer, recreational vehicle, camper, camper truck or commercial vehicle shall be parked, stored or left:
 - (i) On any part of the common open space within Spring Meadow.
 - (ii) Anywhere on the property except in enclosed garages or inside screened enclosures located in the rear yard and approved by the Architectural Review Board.
- (c) The association shall have the right to tow, disable, or remove any vehicle, trailer, or equipment of any type parked, stored, or kept in violation of this Section without notice or prior warning.

Article VII. Material Storage

Section 7.01 Visible Storage

- (a) Storage of materials of any kind, including construction material, that are visible from the street or neighboring yards is not allowed.
- (b) Weeds, vegetation, rubbish, debris, garbage or waste materials are not allowed to be accumulated on any lot in Spring Meadow.

Section 7.02 Children's Toy Storage

- (a) Toys must be stored out of sight when not in use.

Article VIII. Pets

Section 8.01 Owner Responsibility

All pets should be kept under their owner's control at all times and in compliance with applicable leash laws.

- (a) Pets must be on a leash and restrained whenever they are outside of a fence-in area of the community.
- (b) The Board of Directors of the Association has the unfettered and exclusive right at any time to exclude, or have removed from the property certain animals and/or particular breeds of an animal that in its sole discretion it finds to be an unreasonable annoyance, inconvenience, a menace or threat, nuisance or creates an unsanitary condition within the community after a Notice of Opportunity for Hearing.
- (c) Owners are responsible for cleaning up any mess that a pet creates in Common Areas, or on any private property within Spring Meadow.
- (d) Owners are responsible for their animal's actions and are solely liable for any provable damages.
- (e) Each home is limited to three (3) pets.
- (f) Animals creating a nuisance to residents shall not be tolerated – including noise issues (excessive barking, growling, howling, etc.). Should a nuisance become persistent please contact Animal Control for their assistance.
- (g) Invisible fencing (in the rear yard ONLY) may be permitted after ARB approval.

Article IX. Disturbances / Nuisances

In matters that become a problem between neighbors in Spring Meadow, the Board may act upon some, under the general powers conferred by the Declaration. In the rare event that a resident causes unreasonable noise or other disturbances that cannot be resolved by speaking with the neighbor, the appropriate public law enforcement agency should be contacted. (For disturbances related to pets of residents, please see Article VIII, subsection 8.01 (f) of this document.)

Article X. Safety

Section 10.01 Fire

- (a) Residents should use extreme caution when using grills on wood decks or in close proximity to structures or flammable landscape materials such as pine bark mulch or pine needles.
- (b) Smoke detectors should be located on each level of every home near sleeping areas and should be tested twice yearly.
- (c) The local fire department may be contacted for more tips on fire safety.

Section 10.02 Children

- (a) Please observe speed limits and be alert for children playing that may dart into your path. **Keep Spring Meadow safe for everyone.**

Section 10.03 Theft / Burglary

- (a) Please report any suspicious activity in the community to the police department.

Article XI. HOA Contractors

The Board may engage outside contractors to provide services on behalf of the Association and to perform on-going maintenance and landscaping of common areas.

Section 11.01 Management Company

Duties of a management company include accounting services (collecting Association dues, mailing late notices, paying bills on behalf of the Association, etc.), handling homeowner complaints and inquiries and managing agents hired by the Board to perform landscaping services and other Common Area repair or maintenance.

Section 11.02 Landscaping Services

Landscaping services for the common areas of Spring Meadow can include turf maintenance, seasonal flower plantings, pruning/hedge trimming, fertilization programs and mulching.

